



SINGLE SOURCE JUSTIFICATION (UNDER SAT)

JOINT ADMINISTRATIVE OPERATIONS Acquisitions Operations



Pursuant to FAR subpart 13.106-1(b)(1)(i) and (ii), for purchases not exceeding the Simplified Acquisition Threshold (SAT), Contracting Officers may solicit from only one source if the circumstances deem only one source is reasonably available (e.g., urgency, exclusive licensing agreements, brand name, or industrial mobilization).

Instructions: The information in the text boxes are provided as sample language or to indicate a needed fill-in. Sample language should be removed from the final document. All text boxes require information and shall not be left blank.

1. Description of Need

The Whitney Genetics Laboratory processes hundreds of eDNA samples on the Kingfisher Apex each year. Kingfisher Apex are highly technical machines that must be calibrated, maintained and readily available to conduct eDNA sample processing. A service contract is required to keep the Kingfisher Apex operational and calibrated each year to ensure the lab can continue to process eDNA samples in a timely matter. In the event of a system malfunction, immediate and reliable service, as well as providing technical and programming assistance, is required.

2. Market Research Conducted

Any maintenance or service by a non Thermo Fisher Scientific service engineer would void all existing service agreements and manufacture warranties. Thermo Fisher Scientific is the sole manufacturer of the Kingfisher Apex and has not issued a manufacturer's training certification to any third party for the servicing of its manufactured instruments. Therefore, a brand name justification is being sought to ensure the full level of support offered by Thermo Fisher Scientific.

3. Other Capable Sources

Thermo Fisher Scientific is the sole manufacturer of the Kingfisher Apex and has not issued a manufacturer's training certification to any third party for the servicing of its manufactured instruments. The technical support element within the Thermo Fisher Scientific service contract is critical and used frequently for not only machine related issues but also library preparation support and guidance on product selection and application. To ensure all elements of technical support are provided by the service contract, we seek a name brand justification to source directly from Thermo Fisher Scientific.

4. Barriers to Competition

Due to the fact that Thermo Fisher Scientific has proprietary rights for their equipment they are the only option to provide maintenance for our lab equipment. Barriers to competition could not be overcome.

5. Contractor's Qualifications

Life Technologies (Original Equipment Manufacturer), a part of Thermo Fisher Scientific, is the only organization that provides services related for maintenance and repair of the KingFisher Apex Instruments in accordance with the criteria specified in the attached "Services and Support advantages" letter. Only Thermo Fisher Scientific's personnel possess the requisite product knowledge and specialized training to provide such services.

6. Determination of Fair and Reasonable Cost

The anticipated cost is considered fair and reasonable based on a previous award to this vendor. Cost are comparable to other high-end scientific equipment with advanced optical components.

7. Recommendation and Certification by Program Office

Based on the above justification, I recommend this acquisition to be conducted using sole source acquisition procedures. I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.

RACHEL BROWN Digitally signed by RACHEL BROWN
Date: 2025.01.31 12:59:02 -06'00'

Program / Project Officer

8. Contracting Officer Certification and Approval: *Under SAT*

Based on the above justification, I hereby certify and approve the use of sole source acquisition procedures under FAR Part 13 for this purchase.

MELISSA NIEMI Digitally signed by MELISSA NIEMI
Date: 2025.04.18 21:01:29 -05'00'

Contracting Officer